



City of Cambridge

Executive Department

YI-AN HUANG
City Manager

CMA 2026-243
IN CITY COUNCIL
September 14, 2026

To the Honorable, the City Council:

The City Manager will give a Federal update and the Law Department will provide an update on relevant court cases.

Very truly yours,

Yi-An Huang
City Manager





City of Cambridge

A communication transmitted from Yi-An Huang, City Manager, relative to a federal update including an update on relevant court cases.



CITY OF CAMBRIDGE
OFFICE OF THE CITY SOLICITOR

Lawsuits Challenging Federal Actions that Involve the City, or of Special Interest to the City – September 14, 2026 Update

Lawsuit Name	Case No. / Case Citation	Summary of Lawsuit	Status
King County v. Turner * Recent decision	25-3664, 26-1689 (9 th Cir.) 25-cv-00814 (W.D. Wash.)	The City of Cambridge is a plaintiff in this case. Plaintiffs sued Secretary of Transportation, HUD, Secretary of HHS, and HHS for imposing conditions on grants to local governments, including HUD Continuum of Care and DOT grants. The conditions include prohibitions on DEI, "gender ideology," "elective abortions," and aid to immigrants. The imposed conditions threaten over \$12 billion dollars in federal funding. Local governments argue that in imposing conditions on grants, the federal government violates the separation of powers, Spending Clause, the Tenth Amendment, the Due Process Clause (Vagueness), and the Administrative Procedure Act (APA).	Preliminary Injunction entered in favor of local governments on June 3, 2025. The Preliminary Injunction Order has allowed the City to enter into grant agreements with HUD for the Continuum of Care grant funds. Federal government appealed. Appeal pending. A Motion for Preliminary Injunction, asking the Court to order that the conditions do not apply to additional grants, such as CDBG grants, was granted on August 12, 2025. Federal government appealed the August 12 order. On November 12, 2025, the District Court allowed plaintiffs to amend the complaint a third time to add 15 new local governmental entities. A further motion for preliminary injunction was granted by the District Court, on January 21, 2026, extending relief to further local governmental entities. On February 9, 2026, oral arguments were held in the 9 th Circuit Court of Appeals regarding the Federal government's appeal of the District Court's preliminary injunction. The parties are awaiting a decision from the 9 th Circuit Court of Appeals. A further appeal to the 9 th Circuit was filed on March 18, 2026. On August 25, 2026, the 9th Cir. affirmed that the federal government cannot use essential funding to force local communities to adopt unrelated political policies or requirements that go beyond federal law. This impacts \$14 billion in grants that fund essential community services.
San Francisco v. Trump	25-3889 (9 th Cir.) 25-cv- 01350 (N.D. Cal.)	The City of Cambridge is a plaintiff in this case. Lawsuit to enjoin enforcement of President Trump's initial Sanctuary Jurisdiction Executive Order (EO). Plaintiffs argue the EO violates the Tenth Amendment, Separation of Powers, Spending Clause, and Due Process Clause.	Preliminary Injunction entered in favor of local governments, ordering that the Federal government cannot enforce the Sanctuary Jurisdiction EO. Federal government appealed. Appeal oral argument scheduled for December 5, 2025. Second Amended Complaint (SAC) filed that added Cambridge as a plaintiff. Federal government moved to dismiss the SAC. On January 20, 2026, the District Court denied the motion to dismiss the SAC. Plaintiffs filed a second Motion for Preliminary Injunction asking the Court to prevent the Federal government from enforcing Sanctuary Jurisdiction EOs against all of the Plaintiffs, including Cambridge. The Court allowed the motion.
NAEH v. HUD	26-1218 (1 st Cir.) 25-cv-00636 (D.R.I.) 26-cv-00436	The City of Cambridge is a plaintiff in this case. This case is similar to <u>State of Washington v. HUD</u> (see below) but extends the litigation from the state level to local nonprofits and governments. Multiple nonprofits and local governments, including Cambridge, are challenging HUD's changes to the Continuum of Care grant program, which has provided funds to local governments and organizations to fund permanent housing for vulnerable populations. The plaintiffs argue that reversing previous HUD Housing First policy and the imposition of unlawful conditions violates the APA, the Separation of Powers, the Spending Clause, and the First Amendment. The plaintiffs are requesting that the Court order HUD to grant CoC funds on the same basis it did in the last fiscal year, and to strike the unlawful conditions.	Plaintiff nonprofits and local governments filed a motion for preliminary injunction, which was granted on December 19, 2025. An amended complaint and motion for summary judgment were filed by plaintiffs on January 14, 2026. On January 23, 2026, the federal government filed a cross motion for summary judgment and opposition to NAEH's motion for summary judgment. The federal government filed a motion to dissolve the December 19, 2025 preliminary injunctions on an emergency expedited basis. The District Court denied that motion on March 6, 2026. The federal government then appealed to the 1 st Circuit for an emergency stay pending appeal. On April 1, 2026, the 1 st Circuit denied the federal government's motion for a stay pending appeal. On April 27, 2026, the Appeals Court entered judgment dismissing the appeal. Separately, the federal government appealed to the 1 st Circuit the rulings for injunctive relief in favor of the plaintiff nonprofits and local governments.



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			On April 27, 2026, the District Court held a status conference concerning delays in HUD’s issuance of awards. APA. On June 29, 2026, the District Court set aside the November 2025 and December 2025 NOFOs as violative of the APA. However, the District Court did not grant the request for permanent injunctive relief, and it did not allow the plaintiffs to file a supplemental complaint. On July 2, 2026, the Plaintiffs filed a new case and Motion for Preliminary Injunction challenging the 2026 NOFO. The City is a plaintiff in this case as well. The parties agreed to an expedited briefing schedule. On July 17, 2026, the Plaintiffs filed their Motion for Partial Summary Judgment and/or Preliminary Relief with the District Court, requesting blocking of HUD’s unlawful NOFO for FY 2026 CoC funding. On August 7, 2026, the District Court held that the 2026 NOFO violates the APA based on HUD’s failure to engage in required notice-and-comment process and set aside the 2026 NOFO in its entirety. The Court did not otherwise grant injunctive relief.
State of New York v. U.S. Department of Justice (PWORA case)	25-2099 (1 st Cir.) 25-cv-00345 (D.R.I.)	An order in this case applies to the City of Cambridge. States challenged the revocation of various exemptions under the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA). PRWORA is part of the federal welfare system and governs the eligibility of noncitizens for public benefits. Several federal agencies issued new requirements requiring recipients of federal funding to be checked for immigration status. This has meant that many undocumented immigrants who previously had access to certain federal benefits under the agency exemptions are no longer exempted. This also means that states administering federal benefit programs are now required to implement verification schemes to verify the status of benefit recipients, even if the programs previously did not require such verification.	On July 30, the federal defendants stipulated they would not enforce the challenged notices against the plaintiff states until September 10, 2025. The federal defendants also stipulated that they would not enforce the notices based on conduct occurring in the plaintiff States prior to September 11, 2025; funds expended in the plaintiff States prior to September 11, 2025; or any other actions taken in reliance on this Stipulation prior to September 11, 2025. Since Massachusetts is a plaintiff, this applies to Cambridge. On September 10, 2025, the Court granted plaintiffs’ motion for preliminary injunction, which applies to Cambridge. On September 23, 2025, plaintiffs filed an amended complaint. Defendants moved to stay the case because of the Federal shutdown. The District Court denied the request. An appeal of the preliminary injunction ruling was filed on November 7, 2025. On December 11, 2025, the appeal was voluntarily dismissed pursuant to a joint stipulation. On December 4, 2025, the plaintiff states filed a third amended complaint. On December 8, 2025, a stipulation was filed wherein the federal defendants consented to the third amended complaint and agreed to stay enforcement and application of the HUD PRWORA Notice until judgment issues. On May 28, 2026, the parties agreed to a further stipulation limiting HUD’s application or enforcement of PRWORA immigration status verification requirements. Summary judgment briefing concluded on April 17, 2026. No argument date set yet.



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City of Chicago v. Noem	25-cv-12765 (N.D. Ill.)	The City of Boston is a plaintiff in this case. Also, Cambridge, as part of “Boston-Cambridge-Newton, MA-NH Funded Urban Area,” receives UASI funds that are at issue in the case. Chicago, Boston, and other cities allege that DHS and FEMA are violating separation of powers principles, taking action not authorized by Congress, violating Congress’ power of the purse, and violating the APA because they are compelling compliance with anti-DEI requirements as part of their terms and conditions for local governments, like the City of Cambridge, to receive funding for programs supporting mitigation and prevention of natural disasters, terrorist attacks, mass shootings, and other complex emergencies.	Complaint filed on October 20, 2025. Plaintiffs filed a motion for preliminary injunction on October 24, 2025. On November 21, 2025, the District Court entered a preliminary injunction. In doing so, the court found that the federal government likely violated the APA. On January 20, 2026, the federal government filed a notice appealing the preliminary injunction. Plaintiffs filed an amended complaint on January 21, 2026. On March 2, 2026, the District Court granted a second preliminary injunction that applies to new plaintiffs in the case. On June 4, 2026, the District Court allowed plaintiffs to file a further amended complaint. Summary judgment briefing to conclude by November 24, 2026.
State of Illinois v. HUD	26-cv-02262 (N.D. Cal.)	The Commonwealth is a plaintiff in the case and relief is sought that would apply to the City of Cambridge. Plaintiff states allege that HUD’s ambiguous, arbitrary, and capricious changes to the Fair Housing Enforcement Policy violate the APA and threaten their substantial equivalency certification, fund reimbursement, and future processing of claims under state law. Plaintiff States also allege HUD’s actions are contrary to the Spending Clause.	Complaint filed on March 16, 2026. Amended complaint filed on June 24, 2026. On July 22, 2026 HUD filed a Motion to Dismiss. Stipulation for dismissal without prejudice filed on Sept. 2, 2026.
State of Maryland v. Hegseth	26-cv-02322 (D. Md.)	The Commonwealth is a plaintiff in the case and relief is sought that would apply to the City of Cambridge. Plaintiff states allege that Executive Order No. 14398, titled “Addressing DEI Discrimination by Federal Contractors,” violates 41 U.S.C. § 1707 and FAR Subpart 1.5, is arbitrary and capricious, and erodes DEI initiatives in federal contracting.	Complaint filed on June 10, 2026. On July 21, 2026, the Plaintiff States filed a Motion for Summary Judgment.
State of Illinois v. FEMA	26-cv-00485 (D. R.I.)	The Commonwealth is a plaintiff in the case and relief is sought that would apply to the City of Cambridge. Plaintiff states are suing FEMA and DHS challenging new election and immigration conditions recently impose on FEMA/DHS grants, and are challenging a new termination provision in the NOFO.	Complaint filed on July 23, 2026.



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U.S. v. Minnesota, et al.	25-cv-03798	The City of Cambridge joined amicus briefs in the District Court. Plaintiff alleges that the Defendants’ “sanctuary” laws restricting their participation in federal immigration enforcement violate the federal Constitution’s Supremacy Clause on the basis of preemption by federal law and violation of the intergovernmental immunity doctrine. Plaintiff seeks a declaration that the sanctuary laws and policies are unconstitutional and an injunction prohibiting Defendants from enforcing them.	The City of Cambridge joined 134 cities, counties and elected officials as <i>amici</i> in support of the Defendants and their “sanctuary” laws, informing the court that such laws promote public safety, health, and welfare for their respective communities. On July 20, 2026, the U.S. District Court dismissed the Trump administration’s case against Minnesota, the cities of Minneapolis and St. Paul, and Hennepin County. The District Court ruled that the federal government cannot compel local governments to enforce federal immigration law, citing the Constitution’s anticommandeering doctrine. It also rejected the federal government’s claim that the local policies regulate or discriminate against it. Plaintiffs have not filed an appeal of the district court’s decision as of date of this update.
United States v. City of Rochester	25-cv-06226 (W.D.N.Y.)	The City of Cambridge joined an amicus brief in this case. Federal government sued Rochester seeking injunctive relief holding that sanctuary policies violate the Supremacy Clause.	Cross motions for judgment on the pleadings filed by both parties. Amicus brief, in which Cambridge joined, filed on August 28, 2025. Case dismissed, without prejudice, as moot. Federal government filed an amended complaint on December 19, 2025. A motion to dismiss the amended complaint was filed on behalf of the City of Rochester, while the federal government has moved for summary judgment. On September 2, 2026, judgment in favor of Rochester entered and the case was dismissed with prejudice.
United States v. City of Newark	25-cv-05081 (D. N.J.)	The City of Cambridge joined an amicus brief in this case. Federal government alleges local governments and officials violated the Supremacy Clause because sanctuary laws conflict with federal law, local laws unlawfully regulate the federal government, and local laws discriminate against the federal government by marking out federal immigration authorities for disfavored treatment. The federal government seeks declaratory and injunctive relief.	Defendant local governments moved to dismiss. No argument date yet. Federal government moved to stay this case due to the federal government shutdown. District Court of N.J. denied the request because the federal government’s claimed allegations of a grave national emergency at the “Southern Border” warrant “this action proceeding in its ordinary course.” The case was dismissed, without prejudice, for lack of standing, on June 24, 2026. on August 21, 2026, the federal appealed the dismissal.
Lujan v. FMCSA	25-cv-1215 (D.C. Cir.)	The City of Cambridge joined an amicus brief in this case. Suit was filed contesting an interim final rule issued by the Federal Motor Carrier Safety Administration (FMCSA). FMCSA's rule bars asylum seekers, refugees, and Deferred Action for Childhood Arrivals (DACA) recipients with work authorization from holding non-domiciled commercial driver’s licenses.	As of November 13, 2025, FMCSA’s rule is stayed because rule likely improperly issued, was issued without notice and comment, FMCSA acted arbitrarily and capriciously, individual drivers/businesses would be irreparably harmed, and rule would more likely act to harm the public than protect it from a public safety standpoint. The City of Cambridge has also joined other local governments in submitting comments to the FMCSA on its <u>decision</u> to severely narrow the ability for non-citizens to obtain commercial driver’s licenses. The case was ordered to be held in abeyance. A further amicus brief was filed, on March 5, 2026, supporting plaintiffs’ challenge of the interim final version of the rule revoking eligibility of some non-domiciled people for commercial drivers licenses.



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National TPS Alliance v. Noem	25-5724 (9 th Cir.)	The City of Cambridge joined an amicus brief in this case. An appeal of a summary judgment order vacating the federal government’s vacatur and termination of TPS for Venezuela and vacatur of TPS for Haiti.	The amicus brief Cambridge joined was filed on November 12, 2025. On January 28, 2026, a panel of the 9 th Cir. ruled that the federal government violated the Immigration and Nationality Act and “[t]he [DHS] Secretary’s actions fundamentally contradict Congress’s statutory design, and her assertion of a raw, unchecked power to vacate a country’s TPS is irreconcilable with the plain language of the statute.” On February 3, 2026, the federal government petitioned for rehearing en banc. On March 11, 2026, that petition was denied by the 9 th Circuit, and on March 14, 2026 the court’s mandate entered. In the underlying case, <u>National TPS Alliance v. Noem</u> , 25-cv-01766 (N.D. CA), the District Court granted on December 10, 2025, Plaintiffs’ motion for declaratory relief , finding the vacatur of the January 17, 2025 extension of Venezuela’s TPS designation and the termination of the 2023 TPS designation of Venezuela unlawful. This case also involves the TPS designation impacting Haiti. The federal government separately appealed this order on January 8, 2026. That appeal is docketed as 26-187 (9 th Cir.).
National TPS Alliance v. Noem	25-4901 (9 th Cir.)	The City of Cambridge joined an amicus brief in this case. An appeal of an order postponing the effective date of the federal government’s vacatur of TPS for Honduras, Nepal, and Nicaragua.	In the underlying district court case, <u>NTPSA v. Noem</u> , 25-cv-05687 (N.D. CA), an order was entered, on July 31, 2025, continuing TPS for 60,000 individuals from Honduras, Nicaragua, and Nepal. The federal government appealed that order and, on August 20, 2025, a three-judge panel of the 9 th Cir. granted the federal government’s request to stay, pending appeal, the district court order continuing TPS for those individuals. Briefs addressing the overall propriety of the lower court case were later filed by the parties and amici. Argument has not been scheduled. However, during the appeal the district court case continued to proceed, and on December 31, 2025, the district court entered an order that in part granted summary judgment for NTPSA on two of the APA claims. On January 8, 2026, the federal government appealed that ruling to the 9 th Cir.
United States v. City of Boston	26-1852 (1 st Cir.) 25-cv-12456 (D. Mass.)	The City of Boston is a defendant in this case, and the City of Cambridge joined an amicus brief in this case. Federal government sued Boston seeking injunctive relief holding that sanctuary policies violate the Supremacy Clause.	On March 18, 2026, the District Court ordered the parties brief whether the federal government has Article III standing as to each of its claims against the City of Boston. On May 28, 2026, the District Court dismissed the case for lack of standing. Order of dismissal appealed by federal government on July 23, 2026.
United States v. New York City	25-cv-04084 (E.D.N.Y.)	The City of Cambridge joined an amicus brief in this case. Federal government alleges local government violated the Supremacy Clause because sanctuary laws conflict with federal law. The federal government seeks declaratory and injunctive relief.	Defendant local government moved to dismiss. No argument date yet, but the amicus brief has been docketed.



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Watson v. Republican Nat'l. Committee	24-1260 (Supreme Court)	The City of Cambridge joined an amicus brief in this case. Local election officials nationwide oppose a 5th Circuit Court of Appeals decision invalidating post-Election Day ballot receipt deadlines and counting procedures, which would make the processing of provisional ballots, absentee ballots, and Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA) ballots impossible. This is an argument regarding whether federal law preempts state laws.	On June 29, 2026, the Supreme Court upheld a Mississippi law allowing mail ballots postmarked by Election Day to arrive up to five days later and still be counted. The decision allows states that count ballots postmarked by Election Day to continue to do so, pursuant to relevant state law. The Supreme Court's 5-4 majority twice cited, in its opinion, the amicus brief Cambridge joined.
State of Minnesota, et al. v. Noem, et al.	26-cv-00190 (D. Minn.)	The City of Cambridge joined an amicus brief in this case. Lawsuit to enjoin the unwanted federal law enforcement "surge" in Minnesota. Plaintiffs argue the "surge" violates the Tenth Amendment, Equal Sovereignty, and Administrative Procedures Act; is unconstitutional retaliation and viewpoint discrimination in violation of the First Amendment; and constitutes ultra vires executive action. The State of Illinois and City of Chicago, on January 12, 2026, filed a similar suit. 26-cv-321 (N.D. Ill.).	District Court converted plaintiffs' motion for a temporary restraining order (TRO) to a motion for preliminary injunction (PI). The District Court held that Minnesota did not meet its burden of showing that the Tenth Amendment (anticommandeering) and/or Equal Sovereignty require the grant of a preliminary injunction halting a federal law enforcement operation. On April 20, 2026, plaintiffs filed an amended complaint. A motion to dismiss the Amended Complaint was filed on May 20, 2026. A hearing on the motion to dismiss is scheduled for September 9, 2026.
National Council of Nonprofits et al. v. McMahon	26-1972 (1 st Cir.) 25-cv-13242 (D. Mass.)	The City of Cambridge joined an amicus brief in this case. This case challenges a rule change to the Public Service Loan Forgiveness Program. The rule would allow Secretary McMahon to disqualify employers she deems to be engaging in "substantially illegal activities," which include: providing gender affirming care to transgender youth, supporting undocumented immigrants and their families, promoting "diversity, equity, and inclusion," calling for an end to the war in Gaza and engaging in protests and demonstration activities. The City attracts employees because of the ability to participate in the PSLF program, and many of the City's employees currently are enrolled in the PSLF program. This rule change would change the program into a political tool to coerce municipalities to adopt the views of the federal administration.	After a hearing, on June 30, 2026, the District Court held the rule change "contrary to law and promulgated in excess of statutory authority, is arbitrary and capricious, and violates the First Amendment." The District Court vacated the rule change and dismissed the case. On August 27, 2026, the federal government appealed the dismissal order.



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Donald J. Trump v. Barbara	25-365 (Supreme Court)	The City of Cambridge joined an amicus brief in this case. This case challenges an executive order that ends birthright citizenship to babies born in the US after February 19, 2025 to parents without legal status. The case is a nationwide class action. The federal administration has appealed to the U.S. Supreme Court. The case is led by the ACLU and argues the order violates the 14 th amendment.	On June 30, 2026, the Supreme Court held that children born in the United States to parents unlawfully or temporarily present in the United States are “subject to the jurisdiction” of the United States and are citizens at birth pursuant to the 14th Amendment’s citizenship clause.
Miot v. Trump	25-1084 (consolidated with 25-1083) (Supreme Court) 26-5050 (D.C. Cir.) 25-cv-02471 (D. D.C.)	The City of Cambridge joined an amicus brief in this case. Case concerns TPS status for Haitians. Plaintiffs sued to postpone termination of TPS status for Haiti on grounds that termination as implemented by DHS was arbitrary and capricious and violated equal protection.	The Supreme Court held that federal law bars courts from reviewing decisions by the Homeland Security Secretary to end TPS designations. The Supreme Court also held that the Haitian plaintiffs were unlikely to prevail on their claim that the TPS designation termination impacting them was racially motivated. The decision leaves thousands of people subject to deportation to Haiti and Syria – two countries the U.S. Department of State lists as “Do Not Travel” on its Travel Advisory website. Further impact is that over a million people, beyond Haitians and Syrians, could lose their TPS designations without any judicial review.
Mullin v. Dahlia Doe	25-1083 (consolidated with 25-1084) (Supreme Court) 25-2995 (2 nd Cir.) 25-cv-08686 (S.D.N.Y.)	The City of Cambridge joined an amicus brief in this case. Case concerns TPS status for Syrians. Plaintiffs sued to postpone termination of TPS status for Syrians on grounds that termination as implemented by DHS was arbitrary and capricious and violated equal protection.	
AANP v. McMahon	26-cv-01780 (D.C. Cir.)	The City of Cambridge joined an amicus brief in this case. This case challenges the “professional degree” final rule adopted by the Department of Education. The final rule modifies which degrees the Department of Education considers as “professional degrees,” and limits the amount of federal student loans that student borrowers may obtain to fund their education in various fields, including degrees in nursing, public health, marriage and family therapy, education, and social work. The lawsuit raises claims under the APA. Plaintiffs’ seek to stay agency action and a preliminary injunction.	The complaint and motion for preliminary injunction were filed on May 21, 2026. On June 24, 2026, the District Court partially granted the motion to stay. The District Court stayed the portion of the Final Rule that sets forth additional requirements for a professional degree and left intact the portion of the Final Rule that recites a non-exhaustive list of the degrees that have previously been deemed professional. This approach preserves the status quo that existed prior to the adoption of the Final Rule. AANP filed an amended complaint on August 3, 2026.



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United States v. Illinois, Cook County, & Chicago	25-2904 (7 th Cir.) 25-cv-01285 (N.D. Ill.)	The City of Cambridge joined an amicus brief in this case. Case concerns a similar Welcoming Community Ordinance. Federal government sued Illinois, Cook County, and Chicago seeking declaratory and injunctive relief holding that sanctuary policies violate the Supremacy Clause.	On July 25 th , the District Court dismissed the case and upheld the sanctuary policies, including Chicago’s Welcoming Community Ordinance. Local government decisions not to participate in immigration enforcement are protected by the Tenth Amendment and not preempted by federal law. The federal government had until August 22, 2025, to amend its complaint. No amended complaint was filed. The case was dismissed with prejudice on August 26, 2025. On October 24, 2025, the federal government filed a notice of appeal. The amicus brief the City of Cambridge joined was filed on June 16, 2026. Appellate argument is set for October 29, 2026, before the 7 th Circuit.
Danco Labs v. State of Louisiana	25A1207 & 25A1208) (Supreme Court)	The City of Cambridge joined an amicus brief in this case. Whether the Supreme Court should stay or vacate the 5 th Circuit ruling preventing mifepristone from being prescribed by telemedicine and delivered by mail.	The 5 th Circuit’s May 1, 2026 order was administratively stayed until 5 p.m. (EDT) on Thursday, May 14, 2026. On May 14, 2026, the Supreme Court stayed the May 1, 2026 order pending disposition of the appeal in the 5 th Circuit.
President and Fellows of Harvard College v. DHS, et al.	25-1627 (1 st Cir.) 25-cv-11472 (D. Mass.)	The City of Cambridge filed an amicus brief in this case. Harvard contests federal government’s revocation of Harvard’s ability to enroll foreign students and otherwise prevent foreign students from enrolling at Harvard.	U.S. District Court entered order enjoining federal government from “implementing, instituting, maintaining, or giving any force or effect” to the federal government’s revocation of Harvard’s ability to enroll foreign students. Court likewise enjoined presidential proclamation barring foreign students destined for Harvard. Federal government appealed. Appeal pending regarding injunction. Cambridge’s brief in support of Harvard filed on January 16, 2026. Oral argument is scheduled for October 6, 2026.
USPS v. California * This is a new case on this list	26A305 (Supreme Court)	The City of Cambridge joined an amicus brief in this case. This case challenges an Executive Order that seeks to usurp authority over federal elections reserved to the States and Congress.	The federal government seeks a stay, from the Supreme Court, of the preliminary injunction entered by the District Court (Mass.), on September 4, 2026, which prohibits USPS from implementing mandatory sections of its final rule, Ballot Mail for Federal Elections, 91 Fed. Reg. 54966 (Aug. 26, 2026) (to be codified at 39 C.F.R. pt. 111), for the November 3, 2026 midterm elections.
President and Fellows of Harvard College v. HHS, et al.	25-2230 (1 st Cir.) 25-cv-11048 (D. Mass.)	Harvard case. Harvard contests federal government’s withdrawal of federal funding. Harvard argues that the federal government did not take necessary steps to cancel federal funds.	On September 3, 2025, the District Court ruled that the federal government violated the Constitution, Title VI of the 1964 Civil Rights Act, and the APA when it froze more than \$2.6 billion in Harvard research funding. The ruling vacated the freeze orders and termination notices Harvard received from the federal government and permanently enjoined reimposition of unconstitutional conditions on funding. Final judgment entered on October 20, 2025. Federal government appealed the judgment on December 18, 2025. Oral argument is scheduled for October 5, 2026.



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City of Chicago v. United States Department of Homeland Security	25-cv-05462 (N.D. Ill.)	The City of Boston is a plaintiff in this case. Lawsuit seeks to enjoin federal government from freezing funding under the Securing Cities counterterrorism program (STC) and to require the federal government to process pending and future reimbursement requests pursuant to law. The complaint alleges that DHS is violating the separation of powers, that its actions are ultra vires, and that it is violating the APA.	No significant Court orders in this case. Summary judgment papers to be filed by October 2026.
City of Chelsea v. Trump	25-cv-10442 (D. Mass.)	The Cities of Chelsea and Somerville are plaintiffs in this case. Lawsuit challenges Protecting the American People from Invasion EO and other executive actions related to withholding of federal funds based on immigration policy. The plaintiffs seek to enjoin the federal government from withholding federal funds based on sanctuary policies.	Somerville and Chelsea filed a Motion for Preliminary Injunction. On October 2, 2025, the District Court denied the Motion for Preliminary Injunction holding that the cities failed to demonstrate they would suffer imminent and irreparable harm without injunctive relief. On December 18, 2025, Somerville and Chelsea filed a second amended complaint. Federal government filed a motion to dismiss on June 10, 2026. No argument date set.
Vasquez-Perdomo v. Noem	25A169 (Supreme Court) 25-4312 (9 th Cir.); 25-cv-05605	The City of Boston has filed an amicus brief in this case. Lawsuit seeks a temporary restraining order to enjoin ICE and CBP from engaging in unconstitutional and unlawful stops of Los Angeles residents during immigration sweeps. Plaintiffs allege ICE and CBP have a policy and practice of engaging in unconstitutional stops not based on reasonable, individualized suspicion of unlawful presence, but instead based on racial profiling.	District Court granted temporary restraining order, in favor of plaintiffs, regarding unlawful stops and access to counsel. The parties are briefing preliminary injunction and class certification in the District Court. On September 8, 2025, using its Emergency Docket, the Supreme Court entered a stay enjoining the temporary restraining order halting the federal government from “stopping individuals based solely on four factors: (1) their apparent race or ethnicity; (2) whether they spoke Spanish or English with an accent; (3) the type of location at which they were found (such as a car wash or bus stop); and (4) the type of job they appeared to work.” This means the federal government may continue to rely on these four factors alone to stop and seize individuals. Importantly, Justice Kavanaugh indicated in his concurring opinion that if the case eventually reaches the Supreme Court, then the Supreme Court will likely reverse any permanent injunctive relief similar to the temporary relief the District Court previously ordered. The appeal was dismissed on November 21, 2025, and the case returned to lower courts for further proceedings. Plaintiffs filed a second amended complaint, which the federal government moved to dismiss. On August 11, 2026, the motion to dismiss was denied by the District Court. Discovery proceeding in case.



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State of Washington v. HUD	25-cv-00626 (D.R.I.)	Similar case to <u>NAEH v. HUD</u> (see above). The Commonwealth of Massachusetts is a plaintiff in this case. Multiple states, including Massachusetts, are challenging HUD’s changes to the Continuum of Care grant program, which has provided funds to local governments and organizations to fund permanent housing for vulnerable populations. The plaintiffs argue that reversing previous HUD Housing First policy and the imposition of unlawful conditions violates the APA, the Separation of Powers, the Spending Clause, and the Tenth Amendment. The plaintiffs are requesting that the Court order HUD to grant CoC funds on the same basis it did in the last fiscal year, and to strike the unlawful conditions.	Plaintiff states filed a motion for preliminary injunction. On December 11, 2025, plaintiff states filed an amended complaint adding New Mexico as a plaintiff and new allegations related to the federal government’s withdrawal of the 2025 Notice of Funding Opportunity. The motion for preliminary injunction was granted on December 19, 2025. An amended complaint and motion for summary judgment were filed by plaintiffs on January 14, 2026. Summary judgment briefing continues. On May 12, 2026, the parties jointly stipulated that the federal government withdraws grant conditions it attempted to require as part of the non-competitive renewals of expiring Continuum of Care (CoC) projects. As in <u>NAEH v. HUD</u>, the federal government filed a motion to dissolve the December 19, 2025 preliminary injunctions on an emergency expedited basis. The District Court denied that motion on March 6, 2026. The 1st Circuit subsequently also denied the federal government’s motion for a stay pending appeal. On April 23, 2026, the Appeals Court entered judgment dismissing the appeal and issued the Appeals Court’s mandate. On June 29, 2026, the District Court set aside the November 2025 and December 2025 NOFPs as violative of the APA. However, the District Court did not grant the request for permanent injunctive relief and it did not allow the plaintiffs to file a supplemental complaint.
United States v. California	26-926 (9 th Cir.) 25-cv-10999 (C.D. California)	Case concerns state laws regulating permissible uniforms for federal agents. Federal government argues that under the Supremacy Clause the States have no power to regulate “the operations of” the federal government – in this case how federal agents may dress and address the public.	Hearing held January 14, 2026 on federal government’s motion for a preliminary injunction to enjoin enforcement of state laws. A stay was granted as to the state law prohibition against face masks and otherwise denied. The 9th Circuit entered a temporary administrative injunction pending appeal. Oral argument was scheduled for March 3, 2026. Appellate briefing is ongoing. On April 22, 2026, California was enjoined from applying or enforcing § 10 of its No Vigilantes Act. In the District Court, an Answer to the Complaint was filed on April 2, 2026. On May 8, 2026, an order of abeyance was entered, in the District Court case, pending resolution of the Appeals Court case. Oral argument, in the Appeals Court, took place on August 25, 2026.
RICADV v. Kennedy	25-2229 (1 st Cir.) 25-cv-00342 (D.R.I.)	Case concerns non-profit coalition challenge to federal executive orders. Plaintiff nonprofit organizations challenge grant conditions as arbitrary, in excess of statutory authority, and unconstitutional where they seek to impose restrictions on DEI, gender ideology, and abortion.	A preliminary injunction blocks HHS and HUD from enforcing new grant conditions nationwide while the litigation is ongoing. The court determined that the federal government’s actions were arbitrary, exceeded statutory authority, and were likely unconstitutional. The injunction preserves previous grant terms and prevents the imposition of challenged restrictions imposed by executive orders 14168, 14169, and 14182. This PI applies to HUD grant programs where the conditions were imposed - including CDBG, HOME, ESG, Continuum of Care, and HOPWA. On December 22, 2025, the federal government appealed the preliminary injunction order. On January 6, 2026, an order entered voluntarily dismissing the federal government’s appeal. In the District Court the parties filed motions for summary judgment. Summary judgment arguments were held on June 24, 2026. On August 14, 2026, the Plaintiff’s motion for summary judgment was granted to the extent it vacated the new grant conditions, but permanent injunctive relief was not granted by the District Court.



CITY OF CAMBRIDGE
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United States v. Connecticut	26-cv-00568 (D. Conn.)	Challenge to Sanctuary Laws. Federal government alleges local governments and officials violated the Supremacy Clause and Immigration and Nationality Act because sanctuary laws conflict with federal law, local laws unlawfully regulate the federal government, and local laws discriminate against the federal government while attempting to enforce immigration law. The federal government seeks declaratory and injunctive relief.	On July 6, 2026, defendant local governments moved to dismiss the complaint. On July 17, 2026, the City of Cambridge joined a motion for leave to file a brief in support of defendant Connecticut. On July 27, 2026, the federal government filed a cross motion for summary judgment.
United States v. New Jersey	26-cv-01770 (D.N.J.)	Challenge to Sanctuary Laws. Federal government challenges, on Supremacy Clause grounds, New Jersey governor's executive order preventing federal immigration officers from using non-public areas of state-owned property as operation bases to enforce civil immigration law. The federal government seeks declaratory and injunctive relief.	On September 4, 2026, the District Court dismissed the case with prejudice.

NOTE: Resolved cases are removed from this report. To date removed resolved cases include:

- California v. United States DOT, 26-1026 (1st Cir.); 25-cv-00208 (D.R.I.)
- R.I. State Council of Churches v. Rollins, 25A539 (Supreme Court); 25-2089 (1st Cir.); 25-cv-00569 (D.R.I.)
- State of Oregon v. Trump, 25-7194, 25-6268 (9th Cir.); 25-cv-01756 (D. Ore.)
- State of Illinois v. Trump, 25A443 (Supreme Court); 25-2798 (7th Cir.); 25-cv-12174 (N.D. Ill.)
- Commonwealth of MA v. National Institutes of Health, et al, and other associated cases, 25-1343 (1st Cir.); 25-cv-10338 (D. Mass.)
- Newsom v. Trump, 25-3727 (9th Cir.), 25-5553 (9th Cir.), 25-cv-04870 (N.D. CA);
- US v. Illinois, 25-2904 (7th Cir.), 25-cv-01285 (N.D. Ill);
- Massachusetts v. USDA, 25-cv-13165 (D. Mass.);
- Massachusetts v. USDA, 26-cv-11396 (D. Mass).